



KIOWA TRIBE
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OFFICE OF THE LEGISLATURE

RESOLUTION NUMBER KL-CY-2025-027

THE KIOWA TRIBE EMERGENCY RESPONSE FUND ACT OF 2025

At a duly called Session of the Legislature of the Kiowa Tribe held this 31st day of October, 2025. The following resolution and law were adopted.

WHEREAS, the Kiowa Tribe (the “Tribe”) is organized under a constitution, duly adopted and approved by the voters of the Tribe on April 17, 2017 and approved by the U.S. Secretary of the Interior (“Secretary”)(the “Constitution”); and,

WHEREAS, the Kiowa Constitution pursuant to Article VI, Section 6 (a) The Legislature shall have the power to make laws and resolutions in accordance with the requirements of the Constitution. All legislative actions by the Legislature shall be embodied in a written law or resolution. All actions by the Legislature shall be made by a majority vote of the Legislature present, unless otherwise specified in this Constitution. Laws and resolutions which have been enacted shall remain valid until amended or repealed; and,

WHEREAS, the Kiowa Tribe is a sovereign nation and has been so since time immemorial; and,

WHEREAS, the Tribe exercises full enjoyment of the inherent powers of government, including self-determination and autonomy over internal affairs encompassing Tribe citizens, lands, and resources; and,

WHEREAS, on April 17, 2017, qualified voters of the Tribe ratified the Kiowa Constitution as “the supreme law of the land”; and,

WHEREAS, the Kiowa Legislature is vested with the agency to pass laws and resolutions pursuant to Article VI, Section 6(a) of same Constitution; and,

WHEREAS, the Legislature has identified the imperative to create an Emergency Response Fund to issue direct aid to Kiowa families amid the present federal government shutdown, imminent suspensions of SNAP benefits, and intensifying economic strife, food insecurity, and housing instability;

NOW THEREFORE BE IT RESOLVED that the Legislature hereby enacts the EMERGENCY RESPONSE FUND ACT of 2025.

CERTIFICATION

The foregoing Resolution KL-CY-2025-027 was duly voted upon by the Legislature on October 31, 2025, at a Legislative Special Session III-(3), with a vote of (4) in favor and (0) opposed, (0) abstaining, and (3) absent, according to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Primus

Michael Primus

Speaker of the Legislature



LEGISLATIVE RESOLUTION – KL-CY-2025-027

Sponsors: Cole DeLaune, District 4

Co-Sponsors: Kyle Ataddlety, District 1, Michael Primus, District 2, Timothy Satepauhoodle, District 3, Tiya Rosario, District 5, Ben Wolf, District 6, Warren Queton, District 7.

LEGISLATORS	YES Hàu	NO Hàu:né	ABSTAIN Háun á	ABSENT Héngyáðau
Kyle Ataddlety District 1	X			
Michael Primus District 2	X			
Timothy Satepauhoodle District 3	X			
Cole DeLaune District 4	X			
Tiya Rosario District 5				X
Ben Wolf District 6				X
Warren Queton District 7				X Out of District

DELIVERY OF THE RESOLUTION AND LAW TO THE CHAIRMAN

Resolution No. KL-CY-2025-026 was presented to the Chairman of the Kiowa Tribe on the 31st day of October, 2025, pursuant to the Article VI, Section 8(a)(iv) of the Constitution of the Kiowa Tribe, and will become effective after signature by the Chairman or veto override by the Legislature, and as otherwise required by the Constitution.

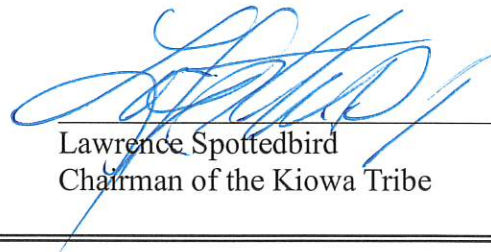
Michael Primus
Speaker of the Legislature

CHAIRMAN'S ACTION:

☒ APPROVED

☐ VETO - RETURNED TO LEGISLATURE WITH EXPLANATION:

On this 3rd day of November, 2025.



Lawrence Spottedbird
Chairman of the Kiowa Tribe

Presented by the Chairman to the Legislature on the ____ day of _____, 2025.

LEGISLATURE'S ACTION:

Override of Chairman's veto:

☐ YES

☐ NO

LEGISLATIVE OVERRIDE ORDER: KLO-CY-2025-0XX

LEGISLATORS	YES	NO	ABSTAIN	ABSENT
Kyle Ataddlety District 1				
Michael Primus District 2				
Timothy Satepauhoodle District 3				
Cole DeLaune District 4				
Tiya Rosario District 5				
Ben Wolf District 6				
Warren Queton District 7				

CERTIFICATION

The foregoing Legislative Order, KLO-CY-2025-00X was duly voted upon by the Legislature on _____, 2025, at a Legislative Override Order Session with a vote of _____ in favor and _____ opposed, and _____ abstaining, _____ Absent. Pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Primus
Speaker of the Legislature

Section 1.1 This enactment shall be cited as the “Emergency Response Fund Act of 2025.”

Section 1.2 These provisions are enacted to provide support for Members of the Kiowa Tribe in light of funding restrictions on certain federal aid programs with the continuing shutdown of the federal government and to define and establish in statute the structure of same support in the form of an Emergency Response Fund.

Section 1.3 The Fund shall be administered by an official within the Executive Branch as determined by the Chairman.

Section 1.4 The Local and Tribal Consistency Funds appropriation shall be used for the purposes set out in this Law. If additional funding is needed, it shall be identified and structured by the Chairman, the Speaker of the Legislature, and the Treasurer/Chief Financial Officer of the Tribe to a maximum overall total of \$2,100,000.

Section 1.5 Any Enrolled Member of the Kiowa Tribe over the age of 18 (19 years of age and older), or who is emancipated and is not the dependent of another person, and who demonstrates eligibility for emergency assistance under the law may apply for a one-time payment in accordance with this Law.

Section 1.6 The following are the only reasons for eligibility to receive funds under this Law:

- a. loss of SNAP benefits in the 120 days prior to application under this Law (for any reason, including the federal shutdown)
- b. being placed on federal furlough in the 180 days prior to application under this Law,
- c. Presenting an unpaid utility bill that is more than 15 days past due,
- d. Presenting an unpaid medical, mortgage, or housing rental bill in any amount that is more than 15 days past due,
- e. being homeless (based on attestation), or
- f. having recently suffered domestic violence (based on attestation).

Section 1.7 If a person has one or more dependent children aged 18 and younger and is seeking funds for any of the reasons enumerated in Section 1.6, then the person may receive a one-time disbursement of \$300 for himself or herself and for each dependent who is an enrolled Member of the Tribe. This exception for dependent children is the only reason any person may receive a payment exceeding \$300.

Section 1.8 A person may only apply once under this Law. If an application is made by a person, or made on behalf of a child, no further application for aid will be paid from this fund for that person or child.

Section 1.9 The following is the process by which every applicant will use to seek aid under this Law. To establish eligibility, a person must demonstrate:

- g. Kiowa Roll Number
- h. Social Security Number
- i. Name and the name of each dependent, along with the Kiowa Roll number for each Kiowa dependent.
- j. Address (if available)
- k. Email address (if available)
- l. cell phone (if available)
- m. Statement of Need (stating which of the items in Section 1.6 apply)
- n. Whether a check or electronic payment is requested
- o. Routing and account number for transfer of electronic funds
- p. Signature under oath that the statement is true and correct

Section 1.10 The Chairman (or his designee) shall prepare an application form containing the items in sections 1.6 and 1.9

Section 1.11 No application will be accepted unless the form supplied is completely filled out (if a paper check is requested, an address is necessary).

Section 1.11 The Chairman (or his designee) shall compare each application to the official roll of the Tribe and document that each applicant is an enrolled Kiowa before approving any application for aid.

Section 1.12 The Chairman (or his designee) shall maintain a list of every person who applies for aid under this law, together with the date of application, the date the application was approved or rejected, the amount applied for, and the amount to be paid.

Section 1.13 The Chairman (or his designee) shall cause all approved applications to be paid within 48 hours of the time an application is approved. The Chairman is authorized to make payments by physical check only to be mailed to an applicant's address or by electronic transfer of funds to the applicant's account, and by no other means.

Section 1.14 Aid shall be made available under this Law on a first-come first-served basis and no further application for aid shall be approved upon the first of the following events:

- a. The exhaustion of funds under this law (when \$2,100,000 in aid payments have been approved by the Chairman or his designee); or

- b. Thirty (30) days after resumption of the federal government on which SNAP benefits are again available.

Section 1.15 Any funds of the \$2,100,000 allocated for this program which are not expended shall become unappropriated and available for future appropriation thirty (30) days after the resumption of the federal government on which SNAP benefits are again available